

# HOUSE . . . . . No. 3882

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Danillo A. Sena***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the military family advocacy program, domestic violence and child abuse and neglect.

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PETITION OF:

| NAME:                  | DISTRICT/ADDRESS:     | DATE ADDED:      |
|------------------------|-----------------------|------------------|
| <i>Danillo A. Sena</i> | <i>37th Middlesex</i> | <i>1/15/2025</i> |

# HOUSE . . . . . No. 3882

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By Representative Sena of Acton, a petition (accompanied by bill, House, No. 3882) of Danillo A. Sena relative to the military family advocacy program, domestic violence and child abuse and neglect. Veterans and Federal Affairs.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 3537 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to the military family advocacy program, domestic violence and child abuse and neglect.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Section 1. Section 51B of Chapter 119 of the General Laws, as appearing in the 2020  
2           Official Edition, is hereby amended by adding the following paragraph (s) to read as follows:

3           “(s) If a report is accepted as a credible allegation of domestic abuse or child abuse or  
4           neglect as defined by the department of children and families, the department shall collect  
5           information concerning the military status of the spouse, intimate partner, parent or guardian of  
6           the child who is the subject of the report and shall share information about the allegation with the  
7           appropriate military authorities in accordance with the memorandum of understanding described  
8           in section 51D.”

9           Section 2. Section 51D of Chapter 119, as appearing in the 2020 Official Edition, is  
10 hereby amended by adding the following paragraph immediately following the paragraph  
11 beginning with “Each area director shall file a monthly report”:

12           “Each area director shall, on behalf of the department, enter into a memorandum of  
13 understanding with the military family advocacy program at a local military installation with  
14 respect to child abuse and neglect investigations. For the purposes of this section, "military  
15 family advocacy program" shall mean the program established by the United States Department  
16 of Defense to address child abuse and neglect in military families. Such memorandum of  
17 understanding shall establish procedures and protocols for matters including, but not limited to,  
18 (i) identifying an individual credibly alleged to have committed abuse or neglect as military  
19 personnel; (ii) identifying appropriate circumstances for reporting to the military family  
20 advocacy program without reducing likelihood of reporting or creating undue risk to the health  
21 or wellbeing of the spouse, intimate partner, or child; (iii) reporting to a military family advocacy  
22 program when an investigation implicating military personnel has been initiated; and (iv)  
23 maintaining confidentiality requirements under state and federal law.”

24           Section 3. This act shall take effect immediately.